

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-06

**SANTA FE DISCOUNT CRUISE PARKING, INC. d/b/a EZ
CRUISE PARKING; LIGHTHOUSE PARKING, INC.; and
SYLVIA ROBLEDO d/b/a 81st DOLPHIN PARKING**

v.

**THE BOARD OF TRUSTEES OF THE GALVESTON
WHARVES and THE GALVESTON PORT FACILITIES
CORPORATION**

**RESPONDENT'S RESPONSE TO COMPLAINANT'S MOTION FOR ENLARGMENT OF
TIME TO FILE REPLY TO RESPONDENTS' REPLY BRIEF ON REMAND**

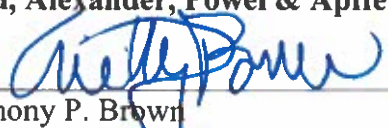
COMES NOW, Respondent, The Board of Trustees of the Galveston Wharves, and files this response to Complainant's Emergency Motion for Enlargement of Time to File Reply to Respondents' Reply Brief on Remand, and will show this Court the following:

1. Respondent agrees with Complainant's request for an extension of time to her Reply Brief. That said, Respondent also wishes to address some of the statements in Complainant's Motion for Enlargement of Time.
2. In the Commission's April, 2021 Order ("CO"), the Commission stated that on remand, the ALJ should consider the extent to which decal fees affect the reparations calculation. (CO at **82). Respondent addressed this issue in its Reply Brief on Remand.
3. In its June 2, 2020, Order on Respondent's Petition for Reconsideration ("CCRO"), the Commission found:
 - a. *"The Board correctly identifies the ALJ's statements on reparation calculations as dicta which it was not required to challenge in exceptions to the Initial Decision on Remand. Because the method for calculating reparations was not fully addressed earlier, the parties should have an opportunity to do so on remand. (CCRO at *14).*

- b. *Reparations calculation issues were not at the forefront of the litigation before the Commission issued the April 2021 Order, so the parties should have an opportunity to address those issues now that they are squarely before the ALJ. (Id.)*
4. Respondent merely included the additional documents **subject to its Motion for Leave** and did not unilaterally expand the scope of the parties' permissible briefing. Respondent followed the Commission's order. The issue of the decals was raised by the Commission, and it was also something not previously dealt with before.
 5. These additional documents were not "additional discovery" as they were previously produced in this case. Complainant opened the door when it included partially complete documents in the record. Respondent seeks to include the **complete copies of those same documents** into the record of this case. Respondent's have a good faith argument for the inclusion of these records as the Commission recognized that reparations had not been fully addressed earlier and were not at the forefront of the litigation.
 6. On October 25, 2022, Respondent's conferred with Complainant's counsel regarding its motion for leave by email and included its motion and the documents it was seeking leave for. Three days later, on October 28, 2022, Complainant's counsel responded that they were opposed. Complainant's counsel has had notice of Respondent's intention to seek this leave and there should not be any surprise to Complainant that Respondent's Motion for Leave was filed.
 7. Respondent respectfully requests that this Honorable ALJ grant Complainant's request for an enlargement of time so that its reply will be due 14 days after an order is issued on Respondent's Motion for Leave.

Respectfully submitted,

McLeod, Alexander, Powel & Apffel, P.C.

By: 

Anthony P. Brown
Texas State Bar No. 03091300
Tex. S.D. Id No. 7185
P. O. Box 629
Galveston, Texas 77553
Phone: 409-763-2481
Fax: 409-762-1155
apbrown@mapalaw.com

ATTORNEYS FOR THE BOARD OF TRUSTEES OF THE
GALVESTON WHARVES

CERTIFICATE OF SERVICE

I hereby certify that I electronically filed this document on this **4th day of November, 2022**, and that a true and correct copy of the foregoing was served on all counsel of record **via** certified mail – return receipt requested and email, as indicated below:

Douglas T. Gilman
Brent J. Allison
GILMAN * ALLISON LLP
2005 Cullen Blvd.
Pearland, Texas 77581

Via email: dgilman@gilmanallison.com
Via email: ballison@gilmanallison.com

ATTORNEYS FOR COMPLAINANTS


ANTHONY P. BROWN